



Australian Government

Comcare

Claim Number: 1326583/1

Dr Richard William McLean
2 McCubbin Street

FOOTSCRAY 3011

28 May 2021

Reconsideration reference number: 63442407

Dear Dr McLean

Receipt of reconsideration request

Your request for reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act), has been received.

A copy of this request for reconsideration has been provided to National Disability Insurance Agency, with an opportunity for them to respond.

If you would like to provide any comments or additional evidence you consider relevant to the reconsideration, please provide this to Comcare by: 4 June 2021.

If no further information is provided, the reconsideration will proceed based on the evidence available on the claim file.

Comcare aims to complete the reconsideration within 30 calendar days from the date of receiving the request or the date the last piece of evidence is received. If this timeframe is unable to be met, you will be contacted.

The information sheet titled [About Your Request for Reconsideration](#) contains more information about the reconsideration process and is attached.

00000681/03897925

Yours sincerely



Bernadette White
Senior Review Officer
Tel: 1300~366~979

Attachments: About a request for reconsideration, A copy of the reconsideration request

ASSISTANCE AND FURTHER INFORMATION OPTIONS

Phone (from landlines only) 1300 366 979, for the cost of a local call or additional information and forms are available from our website at www.comcare.gov.au

- General information about Comcare's claims and benefits are available from our website
- Claims are assessed under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act)
- The clinical framework for the delivery of health services provides guidance for treatment providers helping employees recover and return to work following a workplace injury or disease

Privacy is important to us. More information on how Comcare handles personal information is available from our website or call 1300 366 979.



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ABOUT YOUR REQUEST FOR RECONSIDERATION

Comcare has received your application for reconsideration, and we have appointed a Review Officer to your matter. Please take the time to read the information below as this outlines the reconsideration process. If you have any questions or wish to clarify the information below, please contact your Review Officer.

WHAT IS THE PROCESS OF A RECONSIDERATION

A reconsideration is conducted 'on the papers'. This means that your Review Officer will review all the relevant documents on the claim file and any additional information provided during the reconsideration process. The Review Officer is independent from the management of the claim.

Where new evidence has been presented, the other affected party will be provided a period of time to respond to the request for reconsideration before process will commence. Comcare will provide you with a copy of any information it receives relevant to the reconsideration process.

Once Comcare receives all relevant information, the Review Officer will complete the reconsideration and issue a decision, known as a reviewable decision.

The reviewable decision is expected to be completed within a maximum of 60 days from the receipt of your request. If this timeframe needs to be extended, your Review Officer will communicate the delay and the reason for it directly to you.

OUTCOME

Comcare provides the reviewable decision in writing via your preferred method of communication. If you would like to discuss the outcome of the reconsideration with the Review Officer, you may contact them by phone.

A reviewable decision can do the following in relation to a determination under review:

- > affirm—the determination under review does not change;
- > vary—the determination under review is changed in some way;
- > revoke—the determination under review is overturned and replaced with the reviewable decision.

ONUS OF PROOF

Onus of proof is a legal term that defines how Comcare assesses information on the claim file to make a decision. In the reconsideration process, that means that an employee must demonstrate that an entitlement to compensation exists on the balance of probabilities.

WHAT IS NATURAL JUSTICE

Natural justice means that if any person that is potentially affected by a reconsideration provides information to Comcare that affects another person's interests, we need to release this information to that person and provide them with an opportunity to respond.

WHAT HAPPENS AFTER THE RECONSIDERATION

If either party disagree with Comcare's reviewable decision, then either party may appeal to the Administrative Appeals Tribunal (AAT) by lodging an *Application for review*.

An appeal must be lodged to the AAT within 60 days from the day the reviewable decision is received. We will provide details of your closest AAT registry in the reviewable decision or more information can be found at www.aat.gov.au

CONTACTING COMCARE

You can call Comcare on 1300 366 979, email us at 'reconsiderations.team@comcare.gov.au', or visit our website at www.comcare.gov.au

More information about the reconsideration process can be found at http://www.comcare.gov.au/claims_and_benefits/reconsideration